



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9958

APR 8 1988

1. Burlington Northern Railroad Company, Seattle, Washington, is hereby granted an emergency exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer a package prescribed herein of a non-flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one time shipment of a tank car which contains a residue of chlorine with a defective liquid valve equipped with a chlorine "C" kit, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Burlington Northern Railroad Company's application of April 7, 1988, submitted in accordance with 49 CFR 107.113, based on the protect of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a non-flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine

5. REGULATION AFFECTED. 49 CFR 173.29(c)(2) and 179.102-2.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification 105A500W tank car tank, GATX 44490, with a defective liquid valve, which has been equipped with a chlorine "C" kit to mitigate the emissions of chlorine vapors.

b. The manway protective housing cover while opened must be chained or otherwise fastened so that it cannot change position during transportation

8. SPECIAL PROVISIONS.

a. Shipment must be between Boise Cascade Company, Wallula, Washington to Occidental Chemical Company, Tacoma, Washington a distance of approximately 300 miles.

b. The carrier shall designate an inspector under 49 CFR 215.11 to accompany the movement.

c. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

d. The provisions of 49 CFR Part 107 Appendix B to Subpart B(1) do not apply.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. Upon completion of the movement.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

APR 8 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FRA